

24NNCV00646 24NNCV00646

County: los-angeles

Division: Civil Law and Motion

Department: E

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Case Number: 24NNCV00646 Hearing Date: August 6, 2026 Dept: E

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The Court's tentative is to

DENY the motion for attorney's fees for the following reasons:

Plaintiff seeks nearly one

hundred thousand dollars in attorney's fees in a case that did not go to trial and that apparently 14 attorneys at two law firms worked on. There appears to have been significant duplication of work and excessive billing, in the Court's review. Where a fee request appears unreasonably inflated, the Court has the discretion to deny the request entirely. (See Chavez v. City of Los Angeles (2010) 47 Cal.4th 970, 975.)

Plaintiff seeks a multiplier

in this case which does not appear to be novel or complicated in any way that the Court can understand. Plaintiff's argument appears to be that a multiplier should be applied in contingency cases, which would appear to mean that a multiplier should be applied in every Song-Beverly case. That is not what the law is, as the Court understands it.

The Court will hear from

counsel, but it simply seems untenable that every case in this posture, with this history of litigation activity (or lack thereof) with no articulable complications or novelty would justify attorney's fees awards of nearly one hundred thousand dollars. The request seems facially inflated to this Court, thus

justifying a denial of the request outright. The Court will not be guided by any anchoring techniques to set the parameters of the fee award so far beyond normal boundaries that splitting the difference results in a higher award than would otherwise be granted.

An attorney's fee's motion is not an opening salvo in a negotiation. The request is meant to be based on the number of hours reasonably expended. The plaintiff's request does not appear reasonable to this Court.

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